

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUCR028368: GABRIELLE GIDDENS, et al. vs MISSION BELL HOSPITALITY
INC**

**07/23/2026 in Department 44
Motion for Class Certification**

Motion: Plaintiffs, Gabrielle Giddens and Jaeren McCullough’s (“Giddens,” “McCullough” or collectively, “Plaintiffs”) Motion for Class Certification (“Motion”)

I. Tentative Ruling:

The Court **GRANTS** Plaintiffs’ Motion for Class Certification, with the class defined as:

“All persons who stayed at the Mission Bell Motel and moved, or checked out and reregistered, after 28 to 30 consecutive days of occupancy at any time from August 8, 2020, through the present.”

CLASS COUNSEL AND CLASS REPRESENTATIVES: The Court appoints attorney Yashdeep Singh of Yash Law Group as class counsel for the certified class. The Court appoints Plaintiffs Giddens and McCullough as class representatives for the certified class.

CASE MANAGEMENT CONFERENCE: A case management conference is scheduled for **August 28, 2026, at 8:30 a.m.** At least 10 days in advance of the case management conference, the Court orders Plaintiff to submit a trial plan in accordance with this ruling after meeting and conferring with counsel for Defendants. In addition, the parties shall submit a joint statement that addresses: (a) all the factors set forth in California Rule of Court rule 3.766 and submit a proposed class notice and proposed Rule 3.766(c) order; (b) any further class certification discovery needed to refine class issues; (c) a proposed schedule to adjudicate class-wide issues, including any anticipated dispositive or other significant motions, together with proposed hearing / trial dates and briefing schedules; and (d) any other case management the parties wish the Court to consider.

At the case management conference, the parties may request the Court to advance the hearing dates of pending motions, the motion for judgment on the pleadings and motion to enforce settlement, currently set to be heard January 27, 2027, and May 5, 2027, respectively.

II. RELEVANT BACKGROUND

A. Procedural History

On August 8, 2024, Plaintiffs Giddens and McCullogh filed the operative class action complaint (“Complaint”) alleging (i) violation of California Civil Code section 1940.1, (ii) violation of California Civil Code section 52.1, (iii) negligence, and (iv) violation of California unfair competition law (California Business and Professions Code sections 17200, *et seq.*) against Mission Bell Hospitality, Inc. (“Mission Bell” or “Defendant”).

Defendant filed an answer to the Complaint on December 16, 2024.

On December 17, 2024, Mission Bell filed a cross-complaint (“Cross-Complaint”) alleging (i) equitable/IMPLIED indemnification, (ii) apportionment and contribution, and (iii) declaratory relief against the County of Ventura and James Boyd (“County” or “Boyd” or collectively “Cross-Defendants”).

Cross-Defendants filed an answer to the Cross-Complaint on April 30, 2025.

On August 21, 2025, the parties attended a status conference where Plaintiffs and Defendant (only) reported a tentative settlement, however because they were ultimately unable to reach agreement on final settlement terms, the matter was returned to the litigation track.

At the December 12, 2025 the Court held a non-appearance case review re: reservation of a class certification motion hearing date and briefing schedule. The Court noted that no documents had been submitted, therefore “briefing will be pursuant to CRC 3.764, subd. (c)” and that the “Motion for Class Certification deadline in which the motion must be heard by is July 23, 2026.”

On June 18, 2026, Plaintiffs filed the Motion. Defendant filed their opposition on July 10, 2026, and the motion was fully briefed with the filing of Plaintiffs’ reply papers on July 13, 2026.

The Court notes that Cross-Defendants County and Boyd’s motion for judgment on the pleadings is scheduled for hearing on January 27, 2027, and Mission Bell’s motion to enforce settlement is scheduled for hearing on May 5, 2027.

B. Proposed Class Definition

Plaintiffs seek certification of the following class:

“All persons who stayed at the Mission Bell Motel and moved, or checked out and reregistered, after 28 to 30 consecutive days of occupancy at any time from August 8, 2020 through the present.”

Defendant asks the Court to deny the Motion entirely, or alternatively to deny certification of the second, third, and fourth causes of action; limit any class period to claims accruing within the applicable limitations periods, e.g., no earlier than August 8, 2023 for the Civil Code section 1940.1 penalty claim; and deny certification of any class that combines County voucher-program guests and cash guests without separately represented subclasses.

C. Factual Background Relevant to Class Certification

1. Text and Purpose of Civil Code section 1940.1

Because landlord-tenant laws provide important tenancy rights to guests occupying a unit at a hotel for more than 30 days, including the right to notice and unlawful detainer proceedings prior to eviction (see Civil Code sections 1865, 1940, et seq.), the legislature enacted Civil Code section 1940.1, which provides:

(a) No person may require an occupant of a residential hotel, as defined in Section 50519 of the Health and Safety Code, to move, or to check out and reregister, before the expiration of 30 days occupancy if a purpose is to have that occupant maintain transient occupancy status pursuant to paragraph (1) of subdivision (b) of Section 1940. Evidence that an occupant was required to check out and reregister shall create a rebuttable presumption, which shall affect solely the burden of producing evidence, of the purpose referred to in this subdivision.

(b) In addition to any remedies provided by local ordinance, any violation of subdivision (a) is punishable by a civil penalty of five hundred dollars (\$500). In any action brought pursuant to this section, the prevailing party shall be entitled to reasonable attorney's fees.

2. Defendant's Alleged Practices

Defendant has owned and operated the hotel located at 3237 E. Main Street, Ventura, California 93003, the "Mission Bell Motel" (the "Hotel"), from at least August 8, 2020 through the present. (Singh Decl., ¶ 2.) Mayur Patel a/k/a Mike Patel has been one of the owners and officers of Defendant since it purchased the Hotel, in about 2005. (Id.; Deposition of Mayur Patel ("Patel Depo."), 14:5-16.) Patel is the Hotel's person most knowledgeable to testify on topics such as Defendant's policies and practices regarding guests' occupancy at the Hotel and guests moving, or checking out and re-registering, before the expiration of the 30 days of occupancy. (Singh Decl., ¶ 3; Patel Depo., 16:11-14 & 17:3-5.)

Plaintiffs argue that guests staying at the Hotel have been subject to a strict Hotel policy during the Class period: they must move or check out after 28 consecutive days of occupancy and remain checked out for at least one day before they can re-register to stay at the hotel (the "28-day shuffle policy"). (Patel Depo., 99:6-101:3; 102:4-13, 105:17-106:11, 110:17-111:15, 118:19-25, 132:25-133:9, 142:1-13, 143:15-21, & 151:18-152:6.) Hotel guests throughout the Class period attest that they were advised of Defendant's policy requiring them to move or check out before the expiration of 30 consecutive days of occupancy. (Giddens Decl., ¶¶ 3-4; McCullough Decl., ¶¶ 3-4; Gunderson Decl., ¶¶ 3-4; Quemuel Decl., ¶¶ 3-4.) They were also advised that they would be "locked out" of their units if they did not check out in compliance with the 28-day shuffle policy. (Id.) While some were required to remove all their belongings from their units, others were allowed to leave their belongings, such as heavy furniture, in their units. (Id., 102:14-103:10.) Plaintiffs assert that the 28-day shuffle policy has remained the same and in effect throughout the period.

Defendant contests these allegations, stating that there was no such policy, citing to different portions of Patel's deposition, discovery responses, and its own billing records. (Patel Depo., 79:13-80:9, 103:6-8, 159:16-20, 80:12-23; Opposition, 11:12-13:14.)

3. Plaintiffs Giddens and McCullough

Giddens and McCullough filed nearly identical declarations stating that they resided at the Mission Bell Motel from April 2022 to September 2022, sharing a unit, and that it was both of their "primary residence." (Giddens Dec., ¶¶ 2-3; McCullough Dec., ¶¶ 2-3). Throughout their residency,

the Hotel forced them to check out every 28 days, then checked them in one day or more later, i.e., the “28-day shuffle.” (Giddens Dec., ¶3; McCullough Dec., ¶3).

“The front-desk staff at the Hotel told me that I was required to comply with the 28-day shuffle policy. I was also informed that Ms. Giddens and I would be locked out of our room after the check-out time on my 28th day. It was not my choice to check out every 28 days; I wanted to stay more than 28 consecutive days. Also, I observed other guests being subjected to the 28-day shuffle at the Hotel and getting locked out of their rooms.”

(McCullough Dec., ¶4).

In addition to the above, Giddens declaration also provides that the Hotel’s front-desk staff required her to sign a document that indicated the first day of the 28-day stay and the last date of the 28-day stay. (Giddens Dec., ¶4).

Giddens and McCullough confirm their active participation in the prosecution, and willingness and ability to continue to do so without conflict. (Giddens Dec., ¶5; McCullough Dec., ¶5).

4. Experience of Proposed Class Counsel

Plaintiffs’ counsel, Yashdeep Singh of Yash Law Firm, has practiced since 2011 focused on class action litigation. He started his own practice in April 2014, and has successfully litigated numerous single plaintiff, multi-plaintiff, and class actions in state and federal courts. Singh has litigated other 28-day shuffle class action cases, including six cases noted across Los Angeles Superior Court (“LASC”), Ventura County Superior Court, and Orange County Superior Court (“OCSC”) where he was appointed as class counsel. Five other 28-day shuffle cases where Singh serves as lead counsel are pending, in LASC and OCSC.

III. DISCUSSION

A. Preliminary Matters

1. Timeliness of Opposition Papers

While Plaintiff is correct that the Opposition papers were filed substantially late, see California Rules of Court, rule 3.764, subd. (c)(1), the Court exercises its discretion and will consider. The Court finds that the supplemental declaration of Singh fails to demonstrate any meaningful substantive prejudice.

2. Objections

Defendant’s objection 1 to the declaration of attorney Singh is SUSTAINED. Objections 2-4 are OVERRULED.

3. Request for Judicial Notice

Plaintiff’s unopposed request for judicial notice of California Assembly Committee Bill Analysis for California Civil Code section 1940.1 is granted. Evidence Code section 452, subds. (b)-(c).

B. Legal Standard: Class Certification

Code of Civil Procedure section 382 authorizes class actions “when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court, one or more may sue or defend for the benefit of all.” (Code Civ. Proc., § 382; see also Cal. R. Ct., rule 3.764)

The party seeking to certify a class must demonstrate, with substantial evidence, that “the existence of an ascertainable and sufficiently numerous class, a well-defined community of interest, and substantial benefits from certification that render proceeding as a class superior to the alternatives.” (*Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1021 (“*Brinker*”); *Fireside Bank v. Superior Court* (2007) 40 Cal.4th 1069, 1089 (“*Fireside Bank*”).) The “community of interest” element involves three areas of inquiry: (1) predominant common questions of law or fact; (2) class representatives with claims typical of the class; and (3) class representatives who can adequately represent the class. (*Brinker*, supra, 53 Cal.4th at p. 1021, quoting *Fireside Bank*, supra, 40 Cal.4th at p. 1089 and *Richmond v. Dart Industries, Inc.* (1981) 29 Cal.3d 462, 470.) The predominance inquiry is whether the issues “which may be jointly tried, when compared with those requiring separate adjudication, are so numerous or substantial that the maintenance of a class action would be advantageous to the judicial process and to the litigants.” (*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326, quoting *Collins v. Rocha* (1972) 7 Cal.3d 232, 238.)

“The certification question is ‘essentially a procedural one that does not ask whether an action is legally or factually meritorious.’” (*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326, quoting *Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 439-40.) With respect to whether common questions predominate, for example, the court considers the “type of questions – common or individual – are likely to arise in the action, rather than on the merits of the case.” (*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 327 quoting *Lockheed Martin Corp. v. Superior Court* (2003) 29 Cal.4th 1096, 1106-1107.) The predominance evaluation is whether “the elements necessary to establish liability are susceptible of common proof or, if not, whether there are ways to manage effectively proof of any elements that may require individualized evidence.” (*Ayala v. Antelope Valley Newspapers, Inc.* (2014) 59 Cal.4th 522, 542-43, quoting *Brinker*, supra, 53 Cal.4th at p. 1024.) Finally, a court is not bound by the class definition proposed by the certification motion and should consider whether “to preserve the case as a class action, [to] . . . redefine the class to reduce or eliminate an ascertainability or manageability problem.” (*Sarun v. Dignity Health* (2019) 41 Cal.App.5th 1119, 1137 (“*Sarun*”), citing *Hicks v. Kaufman & Broad Home Corp.* (2001) 89 Cal.App.4th 908, 916 (“*Hicks*”) and *Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 986 (“*Noel*”).)

“[T]rial courts have been given great discretion with regard to class certification.” (*Richmond v. Dart Industries, Inc.* (1981) 29 Cal.3d 462, 470; see also *Fireside Bank v. Superior Court* (2007) 40 Cal.4th 1069, 1089 [“The decision to certify a class rests squarely within the discretion of the trial court”].)

Plaintiff has the burden to show that a “sufficient community of interests exists to justify the maintenance of a class action . . .” and “that substantial benefits both to the litigants and to the court will result.” (*City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 460, citing *Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713; see also *Miller v. Bank of America, N.A.* (2013) 213 Cal.App.4th 1, 7 [“The party seeking class certification has the burden of establishing that the prerequisites are present.”].)

1. Ascertainability and Numerosity

The first element of class certification requires proof that the proposed class is sufficiently numerous and ascertainable. (*Fireside Bank*, supra, 40 Cal.4th at p. 1089.) A proposed class is sufficiently numerous if it would be impracticable to bring all members before the court. (Code Civ. Proc. § 382.) There is no minimum number of class members so long as joinder of them would be impracticable. (*Hendershot v. Ready to Roll Transportation, Inc.* (2014) 228 Cal.App.4th 1213, 1222-1223 [improper to find a 9-person class to be insufficiently numerous without also finding joinder is impracticable].) Ascertainability requires that the proposed class can be defined by “objective characteristics and common transactional facts” that make “the ultimate identification of class members possible when that identification becomes necessary.” (*Noel*, supra, 7 Cal.5th at p. 985, quoting *Hicks*, supra, 89 Cal.App.4th at p. 915.) *Noel* made it clear that ascertainability does not include a requirement that members of a class be readily identified “without unreasonable expense or time,” as was first articulated in *Rose v. City of Hayward* (1981) 126 Cal.App.3d 926, 932. (*Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 985 fn.15 [disapproving prior cases that made ascertainability findings on this heightened standard].)

The Court finds that the proposed class describes a set of common characteristics that permits identification of prospective class members with a potential right to recovery. Those who stayed at the Hotel for between 28 and 30 consecutive days during the Class period, and who were required to either move or to check out and re-register. Guests can be identified because at check-in they were required to provide their contact information and government-issued identification card or driver’s license. (Patel Depo., 61:19-24, 62:8-14, 63:16-24, 67:2- 19, & 138:13-16.) The registration card includes the guest’s name, contact information, number of guests, dates of occupancy, room number, room rate, and identification card or driver’s license number. (Singh Decl., ¶ 4; Patel Depo., 90:6-12 & 16-19, & 138:5-16.) Registration cards also include a handwritten notation for the “First Day” of a 28-day stay, which guests are required to sign. (Id., 101:9-18; Singh Decl., ¶ 5; Giddens Decl., ¶ 4; Quemuel Decl., ¶ 4.) When guests check-out, the registration cards are confirmed or updated to reflect the check-out date. (Patel Depo., 72:14-25.)

The Court further finds that the class is sufficiently large, at least 10 members, likely 44 members and possibly many more (counsel estimates 132 based upon his “reasonable extrapolation”). The Court declines to address allegations of spoliation at this time, as it is unnecessary to deciding this motion given the evidence presented. There are four declarations provided with the moving-papers asserting that each was forced to check out every 28 days, as required by the front-desk staff of the Hotel, and that they were told they would be locked out after the 28th day.

For these reasons, the Court finds that the class is ascertainable.

2. Well-Defined Community of Interest

“The community of interest requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.” (*Richmond, supra*, 29 Cal.3d at p. 470; see also *Fireside Bank, supra*, 40 Cal.4th at p. 1089, quoting *Richmond*.) “[T]he community of interest requirement is not satisfied if every member of the alleged class would be required to litigate numerous and substantial questions determining his individual right to recover following the ‘class judgment’ determining issues common to the purported class.” (*City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 459, quoting *Weaver v. Pasadena Tournament of Roses* (1948) 32 Cal.2d 833, 838-840, 842-843.)

a. Predominance of Common Questions of Law or Fact

“The ‘ultimate question’ the element of predominance presents is whether ‘the issues which may be jointly tried, when compared with those requiring separate adjudication, are so numerous or substantial that the maintenance of a class action would be advantageous to the judicial process and to the litigants.’” (*Brinker, supra*, at p. 1021, quoting *Collins v. Rocha* (1972) 7 Cal.3d 232, 238[.]) “[I]t has never been the law in California that the class representative must have *identical* interests with the class members. The only requirements are that common questions of law and fact *predominate* and that the class representative be *similarly* situated.” (*Classen v. Weller* (1983) 145 Cal.App.3d 27, 46 [emphasis in original].)

“A court must examine the allegations of the complaint and supporting declarations [citation] and consider whether the legal and factual issues they present are such that their resolution in a single class proceeding would be both desirable and feasible.” (*Brinker, supra*, at pp. 1021-1022 [“*ibid.*” omitted].) “As a general rule if the defendant's liability can be determined by facts common to all members of the class, a class will be certified even if the members must individually prove their damages.” (*Brinker, supra*, at p. 1022, quoting *Hicks v. Kaufman and Broad Home Corp.* (2001) 89 Cal.App.4th 908, 916.)

The proposed class here is anyone subject to the 28-day shuffle policy, i.e., “All persons who stayed at the Mission Bell Motel and moved, or checked out and reregistered, after 28 to 30 consecutive days of occupancy at any time from August 8, 2020 through the present.” The elements of a Civil Code section 1940.1 claim are (1) whether the hotel is a “residential hotel”; (2) whether defendants required guests to move, or check out and re-register, before the expiration of 30 days of occupancy; and (3) whether a purpose of defendants’ 28-day shuffle policy was to have occupants maintain transient occupancy status. The Civil Code section 52.1 claim requires “an attempted or completed act of interference with a legal right, accompanied by a form of coercion.”

After considering the evidence and the arguments of counsel, the Court finds that Plaintiffs have established predominance as to the proposed class as to each element of their claims. Plaintiffs rely primarily on common proof derived from Defendants’ own records, and from the testimony of owner Patel. Specifically, Hotel records will provide common proof of Defendant implementing and enforcing the 28-day shuffle policy throughout the Class period. There is evidence that Defendant enforced a policy of locking out guests on the 28th day of occupancy, even if their belongings remained in the unit, and calling law enforcement. The Hotel’s guest registration cards, maintained on paper and/or electronically, track every guest and every stay at the Hotel. (Patel

Depo., 69:8-17, 70:14-17, 76:19-77:6, & 88:2-16.) The registration process and paper registration cards have been identical in form during the Class period, and electronic registration cards have been identical in form since they were introduced in around January 2021. (Patel depo., 68:25-69:11, 78:24-79:1, 90:2-5, & 135:2-8.) Both voucher and cash guests were required to move or check out every 28 days, which Patel admitted is reflected in guest registration cards. (Patel Depo., 133:17-134:7, 135:2-8, 139:2-6, 139:18-141:9, 142:1-7.) Cash guests like Gunderson will attest that the 28-day shuffle policy applied to them, too. (Gunderson Decl., ¶ 4.)

Defendants' evidence contesting the existence of a 28-day policy, and numerous factual disputes, does not defeat predominance. Nor does their assignment of blame on the County and/or Boyd establish that individualized inquiries would predominate over common questions. To the contrary, questions as to whether, why and how the County's administration of its programs affected the Hotel's liability are common to the class. In any event, at this juncture, Defendant's assertion that the County's administration of its Homeless One Stop Program "required" participants to check out every 28 days does not necessary absolve Defendant of liability, and would require the Court to improperly delve into the merits of the claim. Plaintiffs' theory relies primarily on centralized hotel records, rather than individualized testimony regarding stays. Likewise, whether the County or Boyd are to blame will primarily rely on the testimony of a few central witnesses. In connection with the section 1940.1 claim, Plaintiffs only need to show that "a purpose" of their policy was for guests to maintain transient occupancy status; they are not required to show that it was the primary purpose or the main purpose. Therefore, the fact that Patel has denied such a purpose in discovery does not negate the predominance of common issues of law and fact. Plaintiff have proffered sufficient evidence of a Hotel-wide policy in violation of both Civil Code sections 1940.1 and 52, and general negligence principles.

Regarding Defendant's statute of limitations argument, Plaintiffs rely on *Cortez v. Purolator Air Filtration Prod., Co.* (2000) 23 Cal. 4th 163, 168, seemingly contending that when a Civil Code 1940.1 claim, or section 52.1 claim or negligence, serves as predicate for a UCL claim, the statute of limitations period extends for each cause of action. However, the Court finds that the *Cortez* holding does not extend as far as Plaintiffs claim. Under *Cortez*, a four-year statute of limitations will apply to a UCL claim predicated on a statutory violation with a shorter statute of limitations. *Id.* *Cortez* does not hold that once a violation serves as predicate to a UCL claim the statute of limitations for the independent violation also extends to four years. When a plaintiff borrows the violation of another law in order to make a UCL claim, the two causes of action do not merge. That said, here Plaintiffs assert facially a valid UCL claim with a four-year limitations period. There is evidence of Hotel-wide policies violating the underlying predicate claims. The 28-day shuffle policy potentially satisfies the unlawful prong of the UCL, as well as the unfair prong. The proposed Class period is justified.

For these reasons, the Court finds that the relevant issues can all be evaluated through common evidence. Plaintiffs have therefore met their burden of demonstrating that common questions predominate with respect to the proposed class.

b. Typicality

A class representative must have claims typical of the class and be an adequate class representative. The typicality requirement does not require identical interests between the class representative and absent members, but only that the representative be “similarly situated” to the class members and have been subject to the same alleged wrong as the class. (*Medraza v. Honda of North Hollywood* (2008) 166 Cal.App.4th 89, 99; *Classen v. Weller* (1983) 145 Cal.App.3d 27, 46.) A class representative who has some unique claims or defenses to that of the class does not make the representative automatically atypical, but rather the “relevant inquiry is whether, and to what extent, the proffered defenses are “likely to become a major focus of the litigation”” the concern being that the representative “might devote time and effort to the defense at the expense of issues that are common and controlling for the class.” (*Fireside Bank*, supra, 40 Cal.4th at pp. 1090-1091, quoting *Beck v. Maximus, Inc.* (3d Cir. 2006) 457 F.3d 291, 297 & 301.)

Here, Plaintiff Giddens’ claims are typical of those of the putative class members. She was a county-paid voucher guest at the Hotel who was required to check out and reregister after 28 to 30 consecutive days of occupancy. There is no indication that Defendant’s policy differed for cash-guests such that a subclass would be justified. Both Plaintiffs averred that they would maintain the interests of the class in pursuing this litigation.

c. Adequacy

“Adequacy of representation depends on whether the plaintiff’s attorney is qualified to conduct the proposed litigation and the plaintiff’s interests are not antagonistic to the interests of the class.” (*McGhee v. Bank of America* (1976) 60 Cal.App.3d 442, 450 [“The adequacy of representation component of the community of interest requirement for class certification comes into play when the party opposing certification brings forth evidence indicating widespread antagonism to the class suit.”]; see also *Capitol People First v. State Dept. of Developmental Services* (2007) 155 Cal.App.4th 676, 696-697.)

“A party’s claim of representative status will only be defeated by a conflict that goes to the very subject matter of the litigation[.]” (*Martinez*, supra, 231 Cal.App.4th at p. 375-376, quoting *Richmond*, supra, 29 Cal.3d at p. 470.) “The party seeking class certification has the burden of proving the adequacy of its representation.” (*Richmond*, supra, 29 Cal.3d at p. 470.)

Plaintiffs argue they can adequately represent the absent class members’ interests because they share interests and because they have initiated the lawsuit have litigated it to this point and will see it through. Plaintiffs argue their counsel is experienced and have certified classes similar to this one. There is no evidence that Plaintiffs’ interests are antagonistic to those of the class members. (Giddens and McCullough Decls., ¶5.) Further, Plaintiffs’ counsel is well-qualified to represent the class. (Singh Decl., ¶¶ 11-16.) Accordingly, the Court finds that Plaintiffs and their counsel can adequately represent the interests of the absent class members.

3. Superiority

“Resting on considerations of necessity and convenience, the class action attempts to further justice.” (*Blue Chip Stamps v. Superior Court* (1976) 18 Cal.3d 381, 385.) “However, because group action is also capable of injustice, the representative plaintiff must show substantial benefit will result both to the litigants and to the court.” (*Ibid.*) “The class action has been held appropriate

when numerous parties suffer injury of insufficient size to warrant individual action and when denial of class relief would result in unjust advantage to the wrongdoer.” (*Id.*) “A factor in determining feasibility of the group approach is the probability each member will come forward ultimately, identify himself and prove his separate claim to a portion of the total recovery.” (*Id.*) “However, when potential recovery to the individual is small and when substantial time and expense would be consumed in distribution, the purported class member is unlikely to receive any appreciable benefit. The damage action being unmanageable and without substantial benefit to class members, it must then be dismissed.” (*Id.* at p. 386.) “And, when the individual's interests are no longer served by group action, the principal—if not the sole—beneficiary then becomes the class action attorney. To allow this is ‘to sacrifice the goal for the going,’ burdening if not abusing our crowded courts with actions lacking proper purpose.” (*Id.*)

“[T]ermination of a defendant's alleged wrongdoing is a factor to be considered[.]” (*Id.* [citing *Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 715.]) When a complaint alleges a relatively small loss to each individual class member, thereby rendering joinder “virtually impossible,” “[i]t is more likely that, absent a class suit, defendant will retain the benefits from its alleged wrongs.” (*Daar, supra*, at p. 715.)

Plaintiffs argue that class treatment is superior because the claims asserted are based on a uniform Hotel policy that was consistently applied to a vulnerable class of guests, e.g., low-income and homeless individuals. Class treatment here is superior because of the number of guests involved - between 10 to 132. The matter is manageable based on the nature of the proof and testimony required. Evidence, such as surveys and representative testimony, may be used to support common proof. The Court finds that class treatment of class is superior to individual lawsuits, particularly where recovery may be limited in amount.